

23STCV02342 23STCV02342

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-01

Motion: DEFENDANT ALTISOURCE SOLUTIONS, INC. dba GRANITE RISK MANAGEMENT'S NOTICE OF MOTION AND MOTION TO DEEM REQUESTS FOR ADMISSION, SET ONE, AS ADMITTED AS TO PLAINTIFF GEORGE ANDRAOS; REQUEST FOR MONETARY SANCTIONS; AND REQUEST FOR TERMINATING SANCTIONS

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Case Number: 23STCV02342 Hearing Date: September 1, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

GEORGE ANDRAOS, an individual;

Plaintiffs,

vs.

LIFETIME HOME BUILDERS. INC., a

California corporation; ALTISOURCE SOLUTIONS, INC., a Delaware corporation,
dba GRANITE RISK MANAGEMENT; DOES 1-20, inclusive;

Defendants.

AND RELATED CROSS COMPLAINTS.

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CASE NO: 23STCV02342

[TENTATIVE] ORDER RE: DEFENDANT

ALTISOURCE SOLUTIONS, INC. dba GRANITE RISK MANAGEMENT'S NOTICE OF MOTION AND
MOTION TO DEEM REQUESTS FOR ADMISSION, SET ONE, AS ADMITTED AS TO PLAINTIFF GEORGE
ANDRAOS; REQUEST FOR MONETARY SANCTIONS; AND REQUEST FOR TERMINATING SANCTIONS

Dept. 731

September 1, 2026

8:30 a.m.

Matter No. 11

Moving Party: Defendant, Altisource Solutions, Inc.

Opposing Party: None

Notice: OK

Background Facts

Before the Court is Defendant

Altisource Solutions, Inc.'s ("Altisource") (1) motion to deem as admitted the truth of the subject matter in Altisource's Requests for Admission ("RFAs"), Set One, Nos. 1-16, served on Plaintiff George Andraos, (2) request for monetary sanctions against Plaintiff in the amount of \$1,540.00, which is derivative of the motion to deem as admitted, and (3) motion for terminating sanctions.

Altisource served the multi-relief

motion on Plaintiff via email to counsel, as listed in Plaintiff's initial Complaint, and as demonstrated by the proof of service attached to the notice of motion and motion, declaration, and proposed order supporting the motion before the Court. (Compare Complaint, p. 1 [email address for counsel: ], with Jun. 11, 2026, Filings at Proofs of Service [CRS No. 777428387594] [proofs of service showing service by email at ].)

No opposition appears in the record.

Altisource's multi-relief motion is now before the Court.

Motion to Deem as

Admitted; Request for Monetary Sanctions

After review, the Court finds in favor of Altisource as to these requested forms of relief.

a. Deeming

RFAs Admitted

A discovering party may file a motion

to deem as admitted any unanswered requests for admission or any requests answered in a late or unverified response. (Code Civ. Proc., § 2033.280, subd. (b); see Code Civ. Proc., § 2033.240, subd. (a) [RFA responses must be signed by responding party under oath]; see *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 (“Appleton”) [unsworn response to RFAs is treated like no response].) These requests are not automatically deemed admitted; the discovery party must make the motion. (See Code Civ. Proc., § 2033.280, subd. (b).)

To establish this ground, a movant

must show (1) proper service (*id.* at § 2033.070), (2) expiration of the deadline to respond (*id.* at § 2033.250, subds. (a), (b)), and (3) that (a) the responding party served no response (Code Civ. Proc., § 2033.280, subd. (b)), (b) the propounding party served a late response (Code Civ. Proc., § 2033.280, subd. (b)), or (3) the responding party served an unsworn response (see *Appleton*, *supra*, 206 Cal.App.3d at p. 636 [unsworn response to RFAs is treated like no response]).

Here, Altisource’s paper’s show (1)

proper service of RFAs, Set One, Nos. 1-16 (see Jun. 11, 2026, Kalunian Decl., ¶ 12, Ex. A, Proof of Service [service via counsel on all parties that have appeared in case]) and (2)-(3) nonresponse by Plaintiff after expiration of the response deadline (*id.* at ¶ 13).

No opposition appears in the record

to dispute Altisource’s position.

Accordingly, Altisource’s motion is

GRANTED.

The truth of any matters specified

in Requests for Admission, Set One, Nos. 1-16, is DEEMED ADMITTED.

b. Monetary

Sanctions

The Court similarly GRANTS

Altisource's request for sanctions in the amount of \$1,540.00 pursuant to Code of Civil Procedure section 2033.280, subdivision (c), which are properly supported by counsel's declaration attached to the moving papers. (See Jun. 11, 2026, Kalunian Decl., ¶¶ 12-13, 16, Ex. A.)

Motion for

Terminating Sanctions

After review, the Court determines
that insufficient grounds for relief exist here.

While trial courts have broad
discretion in applying discovery sanctions, courts must tailor sanctions to the harm caused and must escalate sanctions incrementally only when lesser sanctions fail, i.e., not impose sanctions as punishment. (Padron v. Watchtower Bible & Tract Society of New York, Inc. (2017) 16 Cal.App.5th 1246, 1259-1260 (Padron).) Terminating sanctions are only awardable when no viable alternative exists before the Court. (Lopez v. Watchtower Bible & Tract Society (2016) 246 Cal.App.4th 566, 604.)

Here, Altisource seeks terminating
sanctions based on what it describes as Plaintiff's history of discovery abuses. Specifically, Altisource bases terminating sanctions on (1) Plaintiff failing to respond to RFAs, Set One and (2) Plaintiff failing to respond to two sets of interrogatories and one set of requests for production served by Altisource on Plaintiff in May 2025, forcing Altisource to file motions to compel, which the Court granted in September 2025 along with monetary sanctions, but with Plaintiff failing to provide discovery responses until December 2025, and Plaintiff altogether failing to pay the Court-ordered monetary sanctions as of the filing of the present motion. (Motion, p. 10.) Altisource also references Plaintiff's purported discovery abuses in relation to discovery served by co-Defendant, Lifetime Home Builders, Inc. (Motion, pp. 10-11.)

Several issues arise from such a
request.

First, the relief sought is
partially based on discovery abuses related to a third party, i.e., Lifetime Home Builders, Inc. Second, the relief sought—terminating sanctions—is not

proportional to the purported discovery abuses, particularly where viable alternatives have already been leveraged. The Court already awarded relief relating to the May 2025 discovery, and to the extent Plaintiff has not paid monetary sanctions pursuant to the September 2025 Order, Plaintiff is ORDERED to do so within 15 days of service of this Order. Separately, the Court has already awarded relief for non-response to RFAs, Set One, above. Third, there is no request for evidence or issue sanctions on outstanding discovery issues to support the finding of incremental increases in degree of sanctions, as discussed in Padron.

Terminating sanctions are accordingly
DENIED.

Defendant Altisource Solutions,
Inc. is ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 1, 2026 _____

MARK C. KIM

Judge of the
Superior Court